

## 25STCV28026 25STCV28026

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-30

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Case Number: 25STCV28026 Hearing Date: July 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July 30, 2026 TRIAL DATE: Not yet set

CASE: Arian Ethan Moshtaghian, et al. v. Kaila Methven, et al.

CASE NO.: 25STCV28026

PLAINTIFF EMIL KOHAN'S MOTIONS TO COMPEL DEFENDANT GREGORY LOOMIS TO SERVE VERIFIED, CODE-COMPLIANT RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

PLAINTIFF EMIL KOHAN'S MOTION TO DEEM REQUESTS FOR ADMISSION, SET ONE, PROPOUNDED TO DEFENDANT GREGORY LOOMIS

ADMITTED

MOVING PARTY: Plaintiff Emil Kohan

RESPONDING PARTY: Unopposed

### I. BACKGROUND

This action arises from a loan agreement executed on November 15, 2023, in which Plaintiffs agreed to loan Loomis and Defendant Kaila Methven \$50,000 (plus a \$2,000 transaction fee and annual interest), to be paid in full on or before May 15, 2024. Methven was the Borrower and Loomis was the Personal Guarantor per the terms of the agreement.

On May 27, 2026, Plaintiff Emil Kohan ("Plaintiff") filed the operative four discovery motions, each with requests for monetary sanctions, seeking to compel Defendant Gregory Loomis's ("Defendant") responses to Plaintiff's first set of form interrogatories, special interrogatories, and requests for production of documents, and to deem requests for admission admitted.

On July 23, 2026, Plaintiff filed a notice of non-opposition to all four of his discovery motions.

## II. LEGAL STANDARD

If a party to whom interrogatories and inspection demands were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) If a party to whom requests for admission are directed fails to serve a timely response, the propounding party may move for an order that the truth of the matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280(b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).) A party moving to compel discovery responses under these statutory provisions is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., §§ 2030.290(b), 2031.300(b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].)

### Monetary Sanctions

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for "misuse of the discovery process," which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court "shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) With respect to untimely responses to admissions requests, sanctions are mandatory. (Code Civ. Proc., § 2033.280(c).)

## III. DISCUSSION

Plaintiff moves the court for an order compelling Defendant to provide responses to his first set of form interrogatories ("FROGS"), special interrogatories ("SROGS"), and requests for production of documents ("RPDs"), and to deem admitted the request for admissions ("RFAs"). It is undisputed that Plaintiff initially properly served Defendant with these discovery requests on January 8, 2026. On February 19, 2026, the day the responses were due, Plaintiff's counsel emailed Defendant after his failure to serve verified responses, during which time Defendant stated he needed a three-week extension. (Zadeh Decl., ¶ 4.) Counsel re-served Defendant on April 23, 2026, and provided him with another extension. (Ibid.) Counsel followed up again twice more in May and granted a final extension to May 21, 2026. (Ibid.) As of the filing of this motion, Defendant has not served verified responses to any of the discovery requests.

Defendant did not file an opposition to a single motion. (The court notes that Defendant Loomis filed a "GLOBAL UNIFIED RESPONSE TO CASE MANAGEMENT CONFERENCE, PLAINTIFFS' DISCOVERY MOTIONS, AND REQUEST FOR TEMPORARY STAY/CONTINUANCE OF ENTIRE ACTION" on July 29, 2026. The court declines to consider this late filing pursuant to CRC 3.1300(d). See also *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 ("A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.").)

Accordingly, the court finds Plaintiff is entitled to an order compelling verified, objection-free responses and an order deeming the RFAs admitted. The court will grant the motions as to the interrogatories, and production and admissions requests.

#### ¿Monetary Sanctions¿¿

Plaintiff requests sanctions against Defendant, who is in pro per.¿ Given the court's ruling, sanctions are warranted and mandatory. However, the court finds the request to be excessive. Plaintiff requests \$1,860 per motion, or a total of \$7,740: 4 hours of attorney time per motion at a rate of \$450/hour, plus the \$60 filing fee. (Zadeh Decl., ¶ 10.) The court finds 4 hours for drafting a simple discovery motion to be excessive, and reduces the grant to 1 hour per motion, for a total of \$1,980 for all four motions.

Accordingly, sanctions are imposed against Defendant in the reduced total amount of \$2,040.00, including filing fees.

#### IV. CONCLUSION

Plaintiff's motions to compel responses to Plaintiff's first set of Form Interrogatories, Special Interrogatories, and Requests for Production of Documents are GRANTED. Plaintiff's motion to deem Requests for Admission, Set One, admitted is GRANTED. Defendant Gregory Loomis is ordered to serve verified, objection-free responses within 15 days of this order.

Plaintiff's request for sanctions is GRANTED. Defendant Gregory Loomis is ordered to pay sanctions in the reduced sum of \$2,040.00 within 30 days.

Plaintiff to give notice, unless waived.

Dated: July 30, 2026

Brock T. Hammond

Judge of the Superior Court

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

30, 2026 TRIAL DATE: Not yet set

CASE: Arian Ethan

Moshtaghian, et al. v. Kaila Methven, et al.

CASE NO.: 25STCV28026

DEFENDANT/CROSS-COMPLAINANT

GREGORY LOOMIS' MOTION FOR LEAVE TO FILE COMPULSORY CROSS-COMPLAINT

MOVING PARTY: Defendant

Gregory Loomis

RESPONDING PARTY: Plaintiffs Arian

Ethan Moshtaghian & Emil Kohan

## I. BACKGROUND

This action

arises from a loan agreement executed on November 15, 2023, in which Plaintiffs

agreed to loan Loomis and Defendant Kaila Methven \$50,000 (plus a \$2,000

transaction fee and annual interest), to be paid in full on or before May 15,

2024. Methven was the Borrower and Loomis was the Personal Guarantor per the

terms of the agreement.

On May 15, 2026, Defendant Gregory Loomis ("Loomis") filed

the operative motion for leave to file a compulsory cross-complaint.

On July 17,

2026, Plaintiffs Arian Ethan Moshtaghian and Emil Kohan (collectively,

“Plaintiffs”) filed an opposition.

On July 23, 2026, Loomis filed a reply.

## II. LEGAL STANDARD

“A party against whom a cause of

action has been asserted in a complaint or cross-complaint may file a

cross-complaint setting forth either or both of the following: . . . (b)

Any cause of action he has against a person alleged to be liable thereon, whether

or not such person is already a party to the action, if the cause of action

asserted in his cross-complaint (1) arises out of the same transaction,

occurrence, or series of transactions or occurrences as the cause brought

against him or (2) asserts a claim, right, or interest in the property or

controversy which is the subject of the cause brought against him.” (Code Civ.

Proc. (“CCP”) §428.10(b).)

A cross-complaint against any of

the parties who filed the initial complaint or cross-complaint against the

cross-complainant must be filed before or at the same time as the answer to the

initial complaint or cross-complaint, which answer must be filed within 30 days

of service of the complaint or cross-complaint. (CCP §§ 412.20(a)(3),

428.50(a), 432.10.) Any other cross-complaint may be filed at any time before

the court has set a trial date. (CCP §428.50(b).)

The proposed cross-complaint is

mandatory when it arises out of the same transaction as plaintiff's claim. The

court must grant leave to file the mandatory cross-complaint absent bad faith.

(CCP § 426.50; *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d

94, 99.)

Any party who failed to bring a

compulsory cross-complaint, "whether through oversight, inadvertence, mistake,

neglect, or other cause," may apply for leave to file a cross-complaint, and as

long as the party acted in "good faith," the court must grant leave. (CCP §

426.50.) This mandatory standard applies regardless of factors such as surprise

or undue burden. (See *Silver Organizations Ltd. v. Frank* (1990)

217 Cal.App.3d 94, 98-99 [section 426.50 leave was mandatory, not

discretionary, even when requested only five days before trial].)

Leave to file a permissive

cross-complaint need only be granted in the interest of justice. (CCP

§428.50(c).) Judicial policy generally supports the resolution of all disputed

matters between parties, leave to amend or leave to cross-complaint is typically

granted liberally. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402,

412.) The Court may, however, deny such leave if there

is demonstrated prejudice to the opposing party, such as trial delays, loss of

critical evidence, or increased preparation costs. (Id.)

“Cross complaints for comparative

equitable indemnity would appear virtually always transactionally related to

the main action.” (Time for Living, Inc. v. Guy Hatfield Homes/All American

Develop. Co. (1991) 230 CA3d 30, 38.)

California Rules of Court (“CRC”),

Rule 3.1324 requires a copy of the proposed cross complaint to be attached to

the motion.

### III. JUDICIAL NOTICE

Plaintiffs request judicial notice of Loomis’

Official Attorney Profile, State Bar No. 189408, maintained by the State Bar of

California, pursuant to Evidence Code section 452, subdivisions (c) and (h).

(Request, Exh. “A”.) Plaintiffs specifically request judicial notice of only

the existence and contents of the official public record.

Pursuant

to subdivision (h) of Evidence Code section 452, the Court grants Plaintiffs’

request because Mr. Loomis’ attorney status is not reasonably subject to

dispute and is capable of immediate and accurate determination. The Court notes

that although it may take judicial notice of the document, the document is only

judicially noticeable to show its existence. The facts and findings and the

truth of the statements contained within the document are not judicially

noticeable. (See *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz*

& *McCort* (2001) 91 Cal.App.4th 875, 885; *Arce v. Kaiser*

*Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 483.)

#### IV. DISCUSSION

Loomis

moves for leave to file a compulsory cross-complaint asserting the following three claims: (1)

relief for “usury and recovery of usurious interest and charges;” (2)

declaratory relief regarding the “correct balance, forfeiture of usurious

interest, payment credits, estoppel, and treble damages;” and (3) declaratory

relief regarding “material alteration, lender identity, Sitka Realty

Corporation, borrower non-consent, and guarantor exoneration.” (Mot., at p. 3.)

Loomis contends that the factual events in the proposed Cross-Complaint arise

out of the same incident and occurrences as Plaintiffs’ complaint under Code of

Civil Procedure sections 426.30, 426.50, and 428.50. Specifically, Loomis

claims that his proposed cross-complaint “is the other half of Plaintiffs’ own

loan dispute,” and “arises

from that same loan, the same alleged guaranty, the same payment history, the

same alleged interest and transaction fee, the same lender identity dispute,

and the same documents Plaintiffs rely upon.” (Mot.,

at pp. 1-2.) Loomis argues that he acted in good faith, and “recognized that certain issues must also be plead affirmatively to obtain monetary and declaratory relief” and not just as affirmative defenses like he did in his answer. (Mot., at p. 5.) Loomis further claims that Plaintiffs will not be prejudiced by a grant, but instead Loomis himself risks forfeiture of his claims if not pled in this action. (Mot., at pp. 5-6.)

In opposition,

Plaintiffs argue that Loomis is not acting in good faith. (Opp., at p. 4.)

Specifically, Plaintiffs argue that “Defendant possessed every operative fact before he answered, pleaded those facts as defenses, and sought affirmative relief only once those defenses were before the Court on Plaintiffs’ writ application.” (Opp., at p.

6.) Plaintiffs further argue that the proposed cross-complaint primarily

duplicates already pending issues before the Court. (Opp., at pp. 6-7.) In the

alternative, Plaintiffs once again argue that the proposed cross-complaint

duplicates already pending issues and granting leave would prejudice Plaintiffs

because it would allegedly “expand the scope of this litigation.” (Opp., at p.

8.) Lastly, Plaintiffs offer a second alternative, requesting that leave be

conditions on the following:

“(1) the filing of the Cross-Complaint shall not delay, continue, or

otherwise affect the hearing or disposition of Plaintiffs’ pending Application

for Right to Attach Order;

(2) the Cross-Complaint shall be deemed filed as of the date of the

order, with Plaintiffs' responsive pleading deadline running from that date and

all responsive challenges expressly preserved; and

(3) Defendant bear Plaintiffs' fees and costs incurred in opposing this

Motion."

(Opp., at pp. 8-9.)

In

Reply, Loomis argues that *Silver Organizations Ltd. v. Frank* (1990) 217

Cal.App.3d 94 is the controlling authority regarding the good faith standard,

and Plaintiffs have not met said burden. Specifically, as to Plaintiffs' timing

argument, Loomis states that he filed his answer "to avoid default and preserve

defenses" and "promptly sought leave to assert related affirmative claims."

(Reply at p. 4.) Loomis maintains his position that Plaintiffs will not be prejudiced.

Here, the

factual events in Loomis' proposed cross-complaint arise out of the same

incident and occurrences as Plaintiffs' complaint under Code of Civil Procedure

section 426.50. Loomis' cross-complaint is the

other side of the coin as to Plaintiffs' complaint regarding the November 15,

2023 loan agreement at issue. It is within the interest of justice to have this

proposed cross-complaint decided with the original complaint as the jury or Court will have to decide the same question under both. Plaintiffs fail to provide sufficient evidence that Loomis acted in bad faith and rely primarily on conclusory statements. The Court does not find that Plaintiffs will be prejudiced because the case is still in its early stages and a trial date has not yet been set. Loomis has also attached a copy of the proposed cross-complaint with the instant motion pursuant to the California Rules of Court, rule 3.1324.

Accordingly, Loomis' motion is granted.

#### V. CONCLUSION

Loomis' Motion for Leave to File Cross-Complaint is GRANTED. Loomis is ordered to file his cross-complaint within 5 days of this order.

Loomis to give notice.

Dated: July 30, 2026

Brock T. Hammond

Judge of the Superior Court